

22STCV20519 22STCV20519

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-30

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1.

Background

Facts

Plaintiff, Jennifer Small, filed this suit against numerous defendants for damages arising out of an assault by a third party at Plaintiff's apartment building. The operative First Amended Complaint asserted causes of action for (1) negligence, (2) breach of contract, (3) breach of implied covenant of good faith and fair dealing, and (4) breach of implied warranty of habitability.

The case proceeded to trial by jury, which concluded with a special verdict on 3/17/26 in favor of Plaintiff.

However, on 5/21/26, the Court granted Defendants' motions for new trial and judgment notwithstanding the verdict, and on 6/1/26, entered Judgment in favor of Defendants.

On 6/26/26, Defendants filed the instant motion to strike the Memorandum of Costs that Plaintiff filed on 6/12/26. The motion is unopposed.

2.

Motion

to Tax Costs

a.

Relief

Sought

Strike the entire Memorandum of Costs that Plaintiff filed on 6/12/16.

b.

Analysis

Code of Civil Procedure "Section 1032 defines prevailing party for purposes of an award of litigation costs. It reads: '(a) As used in this section, unless the context clearly requires otherwise: [¶] ... [¶] 4) "Prevailing party" includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. When any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.' (§ 1032, subd. (a)(4).)" (Wakefield v. Bohlin (2006) 145 Cal.App.4th 963, 972–973, disapproved on other grounds in Goodman v. Lozano (2010) 47 Cal.4th 1327.)

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prevailing party who claims costs in a civil action must serve and file a memorandum of costs. (Cal. Rules of Court, rule 3.1700(a)(1).) "Unless objection is made to the entire cost memorandum, [a] motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable." (Cal. Rules of Court, rule 3.1700(a)(2).)

Here, Defendants move to strike Plaintiff's entire Memorandum of Costs, arguing that Plaintiff is no longer the prevailing party because the Court vacated the jury verdict and entered Judgment in Defendants' favor. The Court agrees, and Plaintiff has not filed an opposition arguing otherwise.

Therefore, the motion to strike the Memorandum of Costs filed on 6/12/26 is GRANTED.

Defendants are ordered to give notice.